

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X
DAIONY LOPEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
PATRICK HUGHES, Shield # 2071, POLICE OFFICER
DANIEL GARCIA, Tax # 948030, POLICE OFFICER
KEVIN GOLDEN, Tax # 948034, SERGEANT SCOTT
BRENES, and POLICE OFFICERS JOHN DOES# 1-10
(names and number of whom are unknown at present), and
other unidentified members of the New York City Police
Department,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

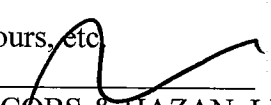
Plaintiff designates Queens
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 5, 2014

Yours, etc.


JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
POLICE OFFICER PATRICK HUGHES, Shield # 2071, 111th Precinct, 45-06 215th St,
Flushing, NY 11361

POLICE OFFICER DANIEL GARCIA, Tax # 948030, 111th Precinct, 45-06 215th St,
Flushing, NY 11361

POLICE OFFICER KEVIN GOLDEN, Tax # 948034, 111th Precinct, 45-06 215th St,
Flushing, NY 11361

SERGEANT SCOTT BRENES, 111th Precinct, 45-06 215th St, Flushing, NY 11361

SUPREME COURT OF THE STATE OF NEW YORK
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DAIONY LOPEZ,

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INDEX NO.:

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
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BRENES, and POLICE OFFICERS JOHN DOES# 1-10
(names and number of whom are unknown at present), and
other unidentified members of the New York City Police
Department,

JURY TRIAL DEMANDED

Defendants.
----- X

Plaintiff, DAIONY LOPEZ, by his attorneys, Jacobs & Hazan, LLP, as and for his
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of
defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section
1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United
States Constitution, and the common law and the laws of the State of New York. On February 8,
2013, at approximately 7:30 p.m., plaintiff, DAIONY LOPEZ, while lawfully driving a motor
vehicle in the vicinity of the Clearview Expressway and 48th Avenue, Queens, New York, was
subject to an unlawful assault, battery, and use of excessive force by the defendant New York
City police officers. Plaintiff was deprived of his constitutional and common law rights when
the individual defendants unlawfully assaulted, battered, and used excessive force against
plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States
Constitution.

PARTIES

2. Plaintiff DAIONY LOPEZ is a resident of the State of New York.

3. POLICE OFFICER PATRICK HUGHES, Shield # 2071, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. POLICE OFFICER PATRICK HUGHES, Shield # 2071, is and was at all times relevant herein, assigned to the 111th precinct.
5. POLICE OFFICER PATRICK HUGHES, Shield # 2071, is being sued in his individual and official capacities.
6. POLICE OFFICER DANIEL GARCIA, Tax # 948030, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. POLICE OFFICER DANIEL GARCIA, Tax # 948030, is and was at all times relevant herein, assigned to the 111th precinct.
8. POLICE OFFICER DANIEL GARCIA, Tax # 948030, is being sued in his individual and official capacities.
9. POLICE OFFICER KEVIN GOLDEN, Tax # 948034, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. POLICE OFFICER KEVIN GOLDEN, Tax # 948034, is and was at all times relevant herein, assigned to the 111th precinct.
11. POLICE OFFICER KEVIN GOLDEN, Tax # 948034, is being sued in his individual and official capacities.
12. SERGEANT SCOTT BRENES, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
13. SERGEANT SCOTT BRENES, is and was at all times relevant herein, assigned to the 111th precinct.
14. SERGEANT SCOTT BRENES, is being sued in his individual and official capacities.
15. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
16. Police Officers John Does #1-10 are being sued in their individual and official capacities.
17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties.

They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

18. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

19. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

20. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

21. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

22. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

23. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

24. On February 8, 2013, at approximately 7:30 p.m., plaintiff was lawfully driving in the vicinity of the Clearview Expressway and 48th Avenue, Queens, New York.

25. While plaintiff was lawfully driving, the individual defendants pulled plaintiff's vehicle over without legal justification or probable cause.

26. After plaintiff pulled his vehicle over, the defendants approached plaintiff's motor vehicle in an aggressive manner.

27. Upon information and belief, the defendant NYPD officers did not believe that plaintiff posed a threat or danger to the defendant NYPD officers.

28. No reasonable police officer would have believed that plaintiff posed a threat or danger to the defendant NYPD officers.

29. Nevertheless, the defendants grabbed plaintiff and dragged him out of his motor vehicle and threw plaintiff onto the ground.

30. The defendant police officers then kicked and stomped and kicked plaintiff's body, including but not limited to, plaintiff's right hand and right shoulder causing plaintiff to suffer serious physical injuries.

31. At no time did plaintiff resist arrest in any way.

32. At no time did the defendants recover any weapons of any kind from plaintiff's person.

33. No reasonable police officer would have believed it was necessary to use physical force against plaintiff at any time.

34. Plaintiff was assaulted and battered and excessive force was used against plaintiff by the defendants without cause or legal justification.

35. After plaintiff was brutally attacked by the defendant NYPD officers, he was transported by EMS to Flushing Hospital Medical Center, where plaintiff was treated for severe injuries to his body, including but not limited to his right hand and right shoulder.

36. Plaintiff was treated at Flushing Hospital Medical Center for his injuries, including but not limited to, a fractured right hand caused by the defendant police officers.

37. Thereafter, plaintiff was discharged from Flushing Hospital to the custody of the defendants, who transported plaintiff to the 111th precinct.

38. After many hours in a holding cell at the 111th precinct, plaintiff was transported to Manhattan Central Booking on or about February 9, 2013.

39. Plaintiff was arraigned on February 9, 2013, and the judge set bail in an amount that plaintiff could not post, so he was remanded to the custody of the Department of Correction.

40. Plaintiff received further medical treatment while he was in the custody of the Department of Correction.

41. None of the individually named defendants intervened to prevent or stop the assault and battery of plaintiff or prevent further injury to plaintiff.

42. By failing to intervene in order to stop this assault and battery, these defendants demonstrated a deliberate indifference to a substantial risk of serious harm to plaintiff.

43. The incident was extremely psychologically damaging to plaintiff. Furthermore, as a result of the incident, plaintiff suffered significant and permanent physical injuries.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The use of excessive force by defendants in throwing plaintiff onto the ground and stomping on his body, hands, and shoulders was an objectively unreasonable physical seizure of plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

46. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

Assault

47. Plaintiff repeats and realleges paragraphs 1 through 46 as if fully set forth herein.

48. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

50. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Battery

51. Plaintiff repeats and realleges paragraphs 1 through 50 as if fully set forth herein.

52. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Negligent Hiring, Retention, Training, and Supervision

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of correction officer duties on February 8, 2013 at the aforementioned location.

FIFTH CAUSE OF ACTION

Failure to Intervene

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

59. Defendants failed to intervene to prevent the unlawful conduct described herein.

60. As a result of the foregoing, plaintiff was brutally physically assaulted.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Negligence

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. Defendants owed a duty of care to plaintiff.

65. Defendants breached that duty of care by assaulting, battering, and using excessive force against plaintiff.

66. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

67. All of the foregoing occurred without any fault or provocation by plaintiff.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. By the actions described herein, the individually named correction officer defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff Daioney Lopez. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

71. As a result of the foregoing, plaintiff was deprived of liberty, was assaulted, and sustained great emotional injuries.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

JURY DEMAND

73. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Daione Lopez demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 5, 2014

By: _____

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DAVID M. HAZAN
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TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
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ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 5, 2014



STUART E. JACOBS